

		Plaintiff to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
110	Lopez vs. CH Robinson Company, Inc. 2022-01259258	Motion for Approval of Class Settlement Plaintiff Javier Lopez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to September 17, 2026, at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative class action and PAGA matter involving alleged Labor Code violations and unfair business practices. On 5/12/2022, Plaintiff Javier Lopez, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant CH Robinson Company, Inc. (ROA #2.) On 7/13/2022, Defendant answered. (ROA #17.) On 9/9/2022, the Court took notice that Plaintiff’s separate PAGA action is a related case—i.e., Plaintiff’s separate PAGA action against the same Defendant: <i>Lopez vs. CH Robinson Company, Inc.</i>, Case No. 30-2022-01273893. (ROA #23.) On 10/19/2022, Defendant filed a motion to compel arbitration. (ROA #36.) On 1/20/2023, the Court partially granted the motion and compelled Plaintiff’s individual claim for waiting time penalties under Labor Code section 203 to arbitration, but stayed the remaining claims in this action, including the class action claim for waiting time penalties. (ROA #82.) On 2/10/2023, Defendant filed a notice of appeal of the Court’s order partially denying Defendant’s motion to compel arbitration. (ROA #86.) On 11/8/2024, the Court of Appeal affirmed in part and reversed in part. The appellate court “conclude[d] substantial evidence supports the trial court’s finding that Lopez is a transportation worker within the ambit of section 1’s exemption, following the two-step analysis in <i>Southwest Airlines Co. v. Saxon</i> (2022) 596 U.S. 450, 455–459 (<i>Saxon</i>). Because the FAA is inapplicable, [the appellate court] h[e]ld the individual reimbursement claim under Labor Code section 2802 is arbitrable.” (ROA #129.) Accordingly, the appellate court reversed “[t]he trial court’s order denying Robinson’s motion to compel arbitration as to Lopez’s individual reimbursement claim under Labor Code section 2802” and “remanded to the trial court to enter an

		order compelling Lopez to arbitrate this claim. In all other respects, the order is affirmed.” (<i>Id.</i>) In the meantime, on 2/28/2023, Plaintiff filed a demand for arbitration with the AAA, but the arbitration was stayed pending the ruling on Defendant’s appeal of the Court’s ruling on the motion to compel arbitration. The parties then agreed to extend the stay pending completion of a second day of mediation. (See ROA #140.) The parties participated in two mediations on 4/2/2024 and on 10/13/2025. (See ROA #145.) On 1/12/2026, the parties reported in a joint statement that they had settled the case. (ROA #150.) On 3/3/2026, pursuant to the parties’ stipulation and the Court’s order, Plaintiff filed the operative first amended complaint, which alleges 4 causes of action, alleging various Labor Code violations and unfair business practices, including a claim for PAGA penalties. (ROA #159.) Per the parties’ settlement agreement, this FAC would include the claims alleged in Plaintiff’s separate PAGA action, and the separate PAGA action would be dismissed without prejudice. On 3/17/2026, the parties filed a joint stipulation to dismiss the separate PAGA action. On 3/30/2026, filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Joint Stipulation of Class and Representative Action Settlement (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$1,160,000. The GSA includes \$116,000 allocated for PAGA penalties. The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. Class Counsel must provide estimates for the number of PAGA Aggrieved Employees and for the total number of PAGA pay periods. 2. The Settlement Agreement provides that unclaimed funds will be remitted to a cy pres recipient, Legal Aid at Work. Accordingly, the parties must provide a declaration demonstrating the propriety of the cy pres recipient and distribution under Code of Civil Procedure section 384. The parties should explain why a cy pres distribution fulfills the purposes of the lawsuit or is otherwise appropriate. (See <i>State of Cal. v. Levi Strauss & Co.</i> (1986) 41 Cal.3d 460, 472; <i>In re Microsoft I-V Cases</i> (2006) 135 Cal.App.4th 706, 722.) 3. In the Settlement Agreement, the escalator clause applicable to the Class payment includes an option allowing Defendant to shorten the Class Period. This is problematic because it renders the Class Period uncertain and may result in eliminating otherwise eligible Class Members from the settlement. 4. Class Members must have the option of submitting requests for exclusion, objections, and workweek disputes by fax, email, and
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		mail. The Court also notes that while the Settlement Agreement permits Class Members to submit requests for exclusion and pay period disputes by fax or mail, objections may only be mailed. 5. The Settlement Agreement does not address whether the Response Deadline for opt outs, objections, and pay period disputes will be extended for any remailed notices. Class Members who receive remailed notices should be given an extension of all relevant deadlines, preferably at least 30 days from remailing. 6. The Settlement Agreement at ¶ 52 states that “[t]he Settlement Administrator will decide if each Request for Exclusion meets the Agreement’s requirements.” The Settlement Agreement must provide that the Court has final say on the validity and authenticity of requests for exclusion. 7. Counsel’s declaration discloses that “[t]he Parties have also entered into a separate confidential settlement agreement resolving Plaintiff’s individual claims alleged in the arbitration proceeding.” (Counsel Decl., ¶ 16.) However, Plaintiff has not provided the Court with a copy of his individual settlement agreement. The Court must review Plaintiff’s individual settlement agreement as part of evaluating whether the instant settlement is fair, adequate, and reasonable and as part of determining whether and how much to award Plaintiff for any enhancement. Given that Plaintiff’s individual settlement agreement is purportedly confidential, Plaintiff’s counsel may submit the agreement for the Court review in camera by lodging a copy with the Court before the hearing. 8. Plaintiff’s counsel must attest to whether there are any concurrent pending cases involving similar claims against Defendant that may be impacted by the settlement and how, or confirm that there is none. Class Counsel must also provide the Court with a revised Class Notice with the following revisions: 1. The notice should be revised so as to be consistent with the resolution of the issues identified above. 2. The pages should be numbered. 3. The following sentences on p. 1 should be bolded: “Your legal rights are affected whether you act or not act. Read this Notice carefully.” The following sentence, also boded, should be added to the end of that paragraph: “You will be deemed to have carefully read and understood it.” 4. The “Summary of Your Legal Rights and Options in This Settlement” chart should provide 4 basic options: (1) do nothing, (2) opt out, (3) object, either by submitting a written objection and/or by attending the Final Approval hearing, and (4) dispute workweeks. 5. Rather than having Class Members draft their own opt-out requests, objections, and workweek disputes, the Class Notice should include separate forms for each of these processes. 6. In addition to Class Counsel’s contact information and the URL to a website maintained by the settlement administrator, the notice should also provide the court’s URL for persons who wish to review the court’s docket for the case.
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Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions:

1. The proposed order should be revised to incorporate the relevant revisions identified above, including attaching the revised Class Notice.
2. Attorney information must be deleted from the caption page.
3. The title of the document should add “and PAGA” between “Class Action” and “Settlement.”
4. The date for the preliminary approval hearing should be updated to reference the continued hearing date.
5. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
6. All terms that require definition must either be defined in the proposed order itself or clearly incorporate by reference definitions found elsewhere in the record.
7. The proposed order should specify the amounts proposed to be allocated from the GSA to attorneys’ fees, litigation costs, enhancement(s), administration costs, and PAGA penalties (including to the LWDA and to Aggrieved Employees).
8. The proposed order should also include the definitions for PAGA Aggrieved Employees and the PAGA Period.
9. Counsel should not leave blank but should instead propose a realistic Final Approval hearing date, taking into account the deadlines associated with mailing and re-mailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys’ fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff’s declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.
10. The proposed order should specify the Court’s continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).

The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at <https://voypubapps.occourts.org/complex-civil-calendar>.

Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance.

		Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
111	Matute v. Textile Products, Inc. 2023-01354041	Motion for Preliminary approval of Class/PAGA Settlement Plaintiff Leandro Fajardo Matute’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to August 27, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action. There is a separate but related PAGA action. More specifically, On 10/4/2023, Plaintiff Leandro Fajardo Matute, individually and on behalf of all others similarly situated, filed a class action complaint against Defendants Textile Products, Inc. and Kordsa, Inc., alleging various Labor Code wage-and-hour violations and unfair business practices. (ROA #2.) On 3/21/2024, Defendants answered. (ROA #26, 29.) On 2/15/2024, the Court took notice of a related case—i.e., Plaintiff’s separately filed PAGA-only action, <i>Fajardo Matute v. Textile Products, Inc.</i>, Case No. 2023-01354032, which is also pending in this department. (ROA #21.) On 4/3/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class claims in this action and Plaintiff’s PAGA claim in the PAGA action for the non-reversionary gross settlement amount (GSA) of \$900,000. The GSA includes \$45,000 allocated for PAGA penalties. The Court has identified a few issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. In ¶ 7.5.2, the Settlement Agreement states twice that “[t]he Administrator’s Determination [of authenticity] shall be final and not appealable or otherwise susceptible to challenge.” (Settlement, ¶ 7.5.2.) But the Settlement Agreement must provide that the Court